

24STCV28907 24STCV28907

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-09-15

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C508%2C09%2F15%2F2026

Source SHA-256: 7a4cc7be2b34b2e8877389211cf616ed72cb9e80b39c3f5b1b8c31b668501195

Case Number: 24STCV28907 Hearing Date: September 15, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

MAYRA RODRIGUEZ,

Plaintiff,

vs.

FCA US, LLC, et al.,

Defendants.

Case No.:

24STCV28907

Hearing Date:

September 15, 2026

Hearing Time: 10:00 a.m.

[TENTATIVE] ORDER RE:

PLAINTIFF'S MOTION TO STRIKE AND/OR TAX
DEFENDANT'S CLAIMED COSTS

Background

On

November 4, 2024, Plaintiff Mayra Rodriguez ("Plaintiff") filed this lemon law action against Defendants FCA US, LLC ("FCA") and Los Angeles Chrysler Dodge Jeep Ram (jointly, "Defendants"), alleging six causes of action for (1) violation of subdivision (d) of Civil Code section 1793.2; (2) violation of subdivision (b) of Civil Code section 1793.2; (3) violation of subdivision (a)(3) of Civil Code section 1793.2; (4) breach of the implied warranty of merchantability; (5) negligent repair; and (6) fraudulent inducement - concealment.

On

March 5, 2026, Plaintiff dismissed the entire action, including all parties and causes of action, without prejudice.

On

March 20, 2026, FCA filed a memorandum of costs.

On

April 6, 2026, Plaintiff filed the instant motion to strike or tax FCA's claimed costs. FCA did not file an opposition.

///

///

Legal

Standard

"Any buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter, [Sale Warranties §§ 1792 et. seq.,] or under an implied or express warranty or service contract may bring an action for the recovery of damages." ((Id., § 1794,

subd. (a).) "If the buyer prevails in an action under [Civil Code section 1794], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)

Pursuant

to Code of Civil Procedure section 1032, subdivision

(b), "[e]xcept as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." "'Prevailing party' includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant." (Code Civ. Proc. § 1032, subd. (a)(4).)

Costs

recoverable under section 1032 are restricted to

those that are both reasonable in amount and reasonably necessary to the conduct of the litigation. (Code Civ. Proc., § 1033.5, subds. (c)(2)-(3).) Costs

"merely convenient or beneficial" to the preparation of a case are disallowed.

(Code Civ. Proc., § 1033.5, subd. (c)(2); see *Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774 (*Ladas*) [expenses for attorney meals incurred while attending local depositions not "reasonably necessary"].)

"A

'verified memorandum of costs is prima facie evidence of [the] propriety' of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary." ((*Adams v. Ford Motor Co.* (2011) 199 Cal.App.4th 1475, 1486-1487.) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." ((*Ladas, supra*, 19 Cal.App.4th at p. 774.) Costs otherwise allowable as a matter of right may be disallowed if the court determines they were not reasonably necessary, and the court has power to reduce the amount of any cost item to an amount that is reasonable. (See *Perko's Enterprises, Inc. v. RRNS Enterprises* (1992)

4 Cal.App.4th 238, 245 [finding that “the intent and effect of section 1033.5, subdivision (c)(2) is to authorize a trial court to disallow recovery of costs, including filing fees, when it determines the costs were incurred unnecessarily”].)

Discussion

Plaintiff moves to strike or tax FCA's claimed costs in the amount of \$549.60, comprising \$489.45 for filing and motion fees, \$28.75 for electronic filing and service, and \$31.40 for fees for hosting electronic documents.

Regarding FCA's ability to recover costs, Plaintiff asserts that “Defendant is barred from recovering costs under section §1032 of the California Code of Civil Procedure. Under Section §1032 (a)(4), a prevailing party is typically entitled to recover allowable costs. However, a defendant is not deemed a prevailing party where the action is voluntarily dismissed by the Plaintiffs without prejudice. Under California Civil Code Section § 1717(b)(2), where an action has been voluntarily dismissed or dismissed pursuant to a settlement of the case, there shall be no prevailing party for purposes of awarding attorney's fees. This statute explicitly states that voluntary dismissal does not confer prevailing party status on the defendant. Courts in California have consistently held that a voluntary dismissal without prejudice does not make the defendant a prevailing party.” (Mot., 2:5-13.)

However, the Court finds that Plaintiff's interpretation is incorrect. As stated by the court in *Cano v. Glover* (2006) 143 Cal.App.4th 326, 331, “[a] defendant in whose favor a dismissal is entered is the prevailing party and is entitled to costs. (C.C.P. 1032(a)(4).) This is true where the plaintiff voluntarily dismisses or where the trial court orders an involuntary dismissal. [Citations].” [Citation.] Defendant is entitled to costs regardless of whether the dismissal is with or without prejudice.” Plaintiff also cites Civil Code section 1717, subdivision (b)(2), to assert that FCA cannot recover fees. However, the foregoing statute applies to disputes arising out of contract and covers attorney fees, not general costs. (See *Cussler v. Crusader Entertainment, LLC* (2012) 212 Cal.App.4th 356, 371, n. 6 [“A prevailing party for purposes of costs under Code of Civil Procedure section 1032 is not necessarily a prevailing party for an award of attorney fees under Civil Code section 1717.”].) Additionally, Plaintiff's case does not involve a breach of contract. Rather, Plaintiff's case arises from her car

warranty and FCA's obligations under the Song-Beverly Act.

As for taxing FCA's

costs, Plaintiff asserts that "Defendant has submitted no invoices and no documentation with respect to its \$549.60 claim. Without invoices, it is impossible to determine whether these fees represent actual court-imposed filing fees or discretionary vendor charges that do not qualify for recovery.

Where a claimed cost cannot be verified as court-imposed based on the documentation submitted, the burden falls on the claiming party to demonstrate recoverability. Defendant has not done so. This item should be taxed in full."

(Mot., 2:16-21.)

As

noted above, "[a] 'verified memorandum of costs is prima facie evidence of [the] propriety' of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary." (Adams v. Ford Motor Co., supra, 199 Cal.App.4th at pp.

1486-1487.) Plaintiff does not provide any law that FCA's failure to file receipts invalidates the verified memorandum of costs. Without legal support, or a demonstration that the costs are not recoverable, Plaintiff does not meet her burden to show these costs should not be stricken. The costs FCA seeks recovery for appear proper and recoverable. Accordingly, the Court denies Plaintiff's motion.

Conclusion

Based

on the foregoing, Plaintiff's motion to strike or tax costs is DENIED. The Court awards FCA its full cost request in the amount of \$549.60.

///

///

Plaintiff

is ordered to provide notice of this Order.

DATED: September 15, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court